

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

TEFFICK RAGBEER,

Plaintiff(s),

-against-

THE CITY OF NEW YORK,

Defendant(s).

Index No.

Summons

Date Index No. Purchased: July 25, 2014

To the above named Defendant(s)

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is the county where the cause of action arose.
which is Richmond County.

Dated: July 25, 2014

DAVID M. GOLDBERG

by

David M. Goldberg

Attorneys for Plaintiff

P.O. Box 254
Amenia, NY 12501
(845) 373-8196

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

-----X
TEFFICK RAGBEER,

INDEX No.

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,

Defendant.

-----X

Plaintiff, complaining of the defendant, by DAVID M. GOLDBERG,
his attorney, alleges, upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION:

1. At all times herein stated, the plaintiff, TEFFICK RAGBEER,
was, and continues still to be, a citizen of the United States and of
the State of New York.

2. At all times herein stated, the defendant, THE CITY OF NEW
YORK (the "CITY"), was, and continues still to be, a public
corporation within the State of New York, and duly created, organized
and existing under and by virtue of the laws of the State of New York.

3. At all times herein stated, the CITY was, and continues
still to be, a municipal corporation within the State of New York, and
duly created, organized and existing under and by virtue of the laws
of the State of New York.

4. At all times herein stated, the CITY did maintain a police
department pursuant to law.

5. At all times herein stated, the CITY did employ police
officers pursuant to law.

6. At all times herein stated, one DET. MICHAEL FAHMY was a detective in the employ of defendant CITY (shield number 1434, Tax No. 936561) and assigned to the Narcotics Bureau of Staten Island.

7. On or about October 4, 2013, while plaintiff was lawfully and properly in his vehicle, near his home and outside of premises, 652 Rockaway Street, in the Borough of Staten Island, City and State of New York, and not in possession of any controlled substance of any kind, nature or description, the defendant, CITY, its agents, servants and employees, did, without any justification or probable cause, and in bad faith, approach the plaintiff with drawn guns, remove him from his vehicle, arrest him, take him into custody, transport him in a motor vehicle, and confine him against his will at the 120th Precinct Station House, located at 78 Richmond Terrace, in the Borough of Staten Island, City and State of New York, and did falsely charge him with the offenses of criminal possession of a controlled substance in the third degree and criminal possession of a controlled substance in the seventh degree.

8. The defendant, CITY, its agents, servants and employees, did, without any justification or probable cause, in bad faith, and in order to obtain a collateral objective outside the legitimate ends of the legal process, commence and continue a criminal action against the plaintiff in the Criminal Court of the City of New York, in and for the County of Richmond, bearing docket number 2013RI008288.

9. On or about June 30, 2014, such Court did dismiss such action.

10. The occurrence hereinabove alleged was due solely to the gross negligence and deliberate indifference of the CITY, its agents, servants and employees, without any fault or want of care on the part of the plaintiff contributing thereto.

11. As a result of such occurrence, the plaintiff sustained severe and painful injuries, was and will be incapacitated, suffered and still suffers pain and agony, suffered confinement and loss of liberty, was placed in grave criminal jeopardy, suffered shock, fear and mental anguish, was falsely caused to be confined, was caused to incur expenses for his defense, lost earnings and income, and was otherwise injured and damaged in his feelings, reputation and character.

12. Notice of the plaintiff's claim and his intention to sue thereon, and of the time when and the place where his injuries were sustained, was duly served and filed with the defendant, CITY, on or about the 16th day of May 2014. More than thirty (30) days have elapsed since the service of such notice of claim, and defendant, CITY, has failed and refused to adjust such claim.

13. By reason of the foregoing, plaintiff has been damaged in a sum that exceeds the monetary jurisdiction of all lower courts that would otherwise have jurisdiction of this action.

14. This action falls within one or more of the exceptions set forth in CPLR 1602.

AS AND FOR A SECOND CAUSE OF ACTION:

15. Plaintiff repeats, reiterates and realleges each and every allegation of the paragraphs designated "1" through "14," inclusive,

of this complaint with the same force and effect as if the same were more fully at length set forth herein.

16. At all times herein stated, the defendant, its agents, servants and employees, were acting under color of state law and pursuant to municipal policy and custom.

17. All of the above occurred as a direct result of the unconstitutional policies, customs or practices of the defendant CITY, including, without limitation, the inadequate screening, hiring, retention, training, and supervision of its employees, and a custom or practice of excessive force, and of widespread falsification.

18. The aforesaid event is not an isolated incident. Defendant CITY is aware, from innumerable lawsuits, notices of claims, and complaints to the New York City Police Department's Internal Affairs Bureau, and the CITY'S Civilian Complaint Review Board, that many New York City Police Department officers are insufficiently trained regarding the use of force, the search of motor vehicles, and the ramifications of falsification.

19. Defendant CITY OF NEW YORK is further aware that such improper training has often resulted in a deprivation of civil rights. Despite such notice, defendant CITY has failed to take adequate or any corrective action. This failure caused the officers in the present case to violate the plaintiffs' civil rights.

20. Defendant's said agents, servants and employees caused plaintiff to be prosecuted in order to obtain a collateral objective outside the legitimate ends of the legal process, to wit: to avoid discipline for their unlawful conduct herein alleged.

21. The aforementioned customs, policies, usages, practices, procedures and rules of the New York City Police Department included, but were not limited to: unlawfully searching private vehicles; subjecting individuals to the excessive use of force; and arresting individuals without probable cause and then committing perjury and/or manufacturing evidence in an effort to convict such individuals. In addition, the CITY engaged in a policy, custom or practice of inadequate screening, hiring, retaining, training, and supervising its employees that were the moving force behind the violation of plaintiffs' rights alleged herein. As a result of the failure of the CITY to properly recruit, screen, train, discipline, and supervise its officers, defendant CITY has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

22. Such customs, policies, usages, practices, procedures and rules of the CITY and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of plaintiff.

23. Such customs, policies, usages, practices, procedures and rules of the CITY and the New York City Police Department were the direct and proximate cause, as well as the moving force behind the constitutional violations suffered by plaintiff, as alleged herein.

24. As a result of the said occurrence, plaintiff was deprived of rights, privileges and immunities secured to him by the Constitution and laws of the United States, particularly the Fourth, Fifth and Fourteenth Amendments thereto, including and particularly

his rights not to be subjected to unnecessary restraint and harm, to be secure in his person against unreasonable searches and seizure, and his rights to be free from harm and from arbitrary interference with his person, his rights to freedom of movement and to due process of law, and to be accorded the equal protection of the laws at the hands of persons acting under color of state law.

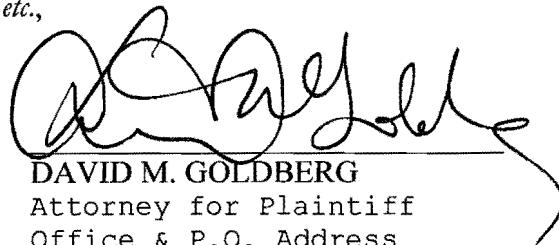
25. By reason of the foregoing, plaintiff has been damaged in a sum that exceeds the monetary jurisdiction of all lower courts that might otherwise have jurisdiction of this action.

26. This action falls within one or more of the exceptions set forth in CPLR 1602.

WHEREFORE, the plaintiff, TEFFICK RAGBEER, demands judgment against the defendant on each and every cause of action herein in a sum that exceeds the monetary limits of all courts that might otherwise have jurisdiction of this action, together with the costs and disbursements of this action and, on the Second Cause of Action, with reasonable attorneys' fees.

Dated: Amenia, New York
July 25, 2014

Yours, etc.,

A handwritten signature in black ink, appearing to read 'David M. Goldberg', with a long, sweeping horizontal line extending to the right.

DAVID M. GOLDBERG
Attorney for Plaintiff
Office & P.O. Address
P.O. Box 254
Amenia, NY 12501-0254
(845) 373-8196

VERIFICATION

DAVID M. GOLDBERG, an attorney at law duly admitted to practice in the State of New York, affirms, under the penalty of perjury and pursuant to CPLR 2106, that the following is true:

1. I am the attorney for TEFFICK RAGBEER, the plaintiff in the within action. I have read the foregoing Complaint, and know the contents thereof. The same is true to my own knowledge, except as to those matters therein stated to be alleged upon information and belief, and as to those matters I believe it to be true.

2. This verification is made by me and not by the plaintiff because plaintiff is not in the county where I maintain my offices for the practice of law.

3. The source of my information is the investigation conducted by me.

Dated: Amenia, New York
 July 25, 2014



DAVID M. GOLDBERG

TEFFICK RAGBEER,

Plaintiff,

-against-

THE CITY OF NEW YORK,

Defendant.

SUMMONS AND VERIFIED COMPLAINT

DAVID M. GOLDBERG

Attorney for Plaintiff

P.O. Box 254

Amenia, NY 12501

(845) 373-8196

Service of the within

is hereby admitted.

Dated: , New York

Attorney (s) for

SIR: - PLEASE TAKE NOTICE

☐ NOTICE OF ENTRY

that the within is a [certified] true copy of a
within-named court on the day of

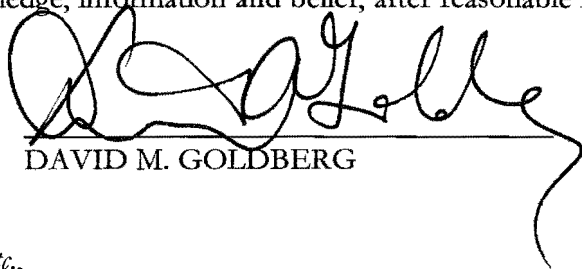
duly entered in the office of the clerk of the
20 . . .

☐ NOTICE OF SETTLEMENT

that an Order of which the within is a true copy will be presented for settlement to the Honorable Clerk of the
within-named court, at , New York, on the day of 20 , at AM/PM.

☒ CERTIFICATION

The undersigned, an attorney admitted to practice in the State of New York, certifies, pursuant to the Rules of
Court, 22 NYCRR § 130-1.1a, that, to the best of my knowledge, information and belief, after reasonable inquiry,
the contentions in the within papers are not frivolous.



DAVID M. GOLDBERG

Dated: Amenia, New York
July 25, 2014

Yours, etc.,

DAVID M. GOLDBERG

Attorney for Plaintiff

P.O. Box 254

Amenia, NY 12501

(845) 373-8196

TO:
Attorney (s) for